



Mini Melts of Canada
3041 – 3 Highland Park Green NE, Airdrie, AB T4A 0X4
Phone: 403-537-1045
Email: sales@minimelts.ca

MINI MELTS ICE CREAM FREEZER PROGRAM AGREEMENT

This Freezer Program Agreement (the “**Agreement**”) is entered into as of the date of last signature below (the “**Effective Date**”).

1. Parties

Supplier

1219871 Alberta Ltd. o/a Mini Melts of Canada
Address: 3041 – 3 Highland Park Green NE, Airdrie, AB T4A 0X4
Email: sales@minimelts.ca
Phone: 403-537-1045

Retailer

Legal Name: _____ Operating Name (if different): _____

Address: _____

Email: _____

Phone: _____

2. Definitions

- “**Products**” means Mini Melts® branded ice cream products.
- “**Freezer**” means the ultra-low temperature freezer supplied by Supplier.
- “**Minimum Purchase Requirement**” means purchases of Products totaling **\$3,000 CAD per calendar year**, exclusive of taxes, discounts, credits, and returns.
- “**Rental Fee**” means **\$50 CAD per month**, plus applicable taxes.

3. Freezer Ownership and Use

Supplier may provide Retailer with a Freezer at no charge for the sole purpose of storing and selling Products.

Retailer acknowledges and agrees that:

- The Freezer remains the **exclusive property of Supplier** at all times.
- The Freezer may only be used to store Products supplied by Supplier.
- Retailer is responsible for maintaining power to the freezer and Supplier is not responsible for any losses due to power loss or interruptions.
- Supplier will be responsible for any product loss due to catastrophic failure of the freezer.

No ownership, leasehold, or security interest in the Freezer is transferred under this Agreement.

4. Product Pricing and Order Requirements

4.1 Product Pricing

- Ice Cream Cups: **\$2.89 CAD per cup**, plus applicable taxes
- Pricing is subject to change upon written notice from Supplier

4.2 Initial Order Requirement

Retailer agrees that the **initial order** under this Agreement shall consist of a **minimum of 352 cups** of Products.

4.3 Minimum Subsequent Orders

All **subsequent orders** placed after the initial order must consist of a **minimum of 180 cups per order**.

Supplier reserves the right to decline orders that do not meet minimum order quantities.

4.4 Delivery Fee

Each order placed by Retailer shall be subject to a **delivery fee of \$20 CAD per order**, plus applicable taxes.

5. Minimum Purchase Requirement

As a condition of continued eligibility for a no-charge Freezer, Retailer agrees to purchase a minimum of **\$3,000 CAD of Products per calendar year** (January 1 to December 31).

6. Freezer Program Structure (Free vs. Rental)

6.1 No-Charge Freezer

The Freezer shall be provided **at no charge** so long as Retailer meets the Minimum Purchase Requirement.

6.2 Conversion to Rental

If Retailer fails to meet the Minimum Purchase Requirement for any calendar year, then beginning on the first day of the following calendar year:

- the Freezer shall automatically convert to a **month-to-month rental**, and
- Retailer shall pay the **Rental Fee of \$50 CAD per month**, plus applicable taxes.

No amendment or additional agreement shall be required for this conversion to take effect.

7. Supplier Options Upon Non-Compliance

If Retailer fails to meet the Minimum Purchase Requirement, Supplier may, at its discretion and upon written notice:

- a) continue the relationship under the rental terms;
- b) remove the Freezer from Retailer's premises; and/or
- c) terminate this Agreement.

8. Rental Fees and Payment

Rental Fees:

- shall be invoiced monthly or in such manner as Supplier determines;
- are payable in accordance with Supplier's standard payment terms; and
- failure to pay Rental Fees constitutes a **material breach** of this Agreement.

9. Access and Freezer Removal

Retailer shall provide reasonable access during normal business hours for inspection, servicing, or removal of the Freezer.

Retailer shall cooperate fully with removal and ensure the Freezer is accessible and unobstructed.

10. Inventory Credit Upon Freezer Removal

If Supplier removes the Freezer, Supplier shall issue Retailer a **credit** for Products remaining in the Freezer at the time of removal, provided that such Products:

- are unopened, undamaged, and saleable;
- have been stored in accordance with Supplier's temperature and handling requirements; and
- are verified by Supplier or its representative at the time of removal.

No credit shall be issued for damaged, expired, improperly stored, opened, or non-Supplier products.

11. Risk of Loss

Except for inventory credited under Section 10 and loss covered under Section 3, Retailer assumes all risk of loss, damage, or spoilage of Products while in Retailer's possession.

12. Term and Termination

Supplier may terminate this Agreement upon written notice if Retailer:

- fails to pay Rental Fees when due; or
- fails to comply with any material obligation under this Agreement.

Upon termination, Retailer shall immediately cease use of the Freezer and cooperate with its removal.

13. Text Message (SMS) Opt-In

By signing this Agreement, Retailer **expressly consents** to receive text messages (SMS) from Mini Melts related to orders, deliveries, account updates, promotions, and operational communications.

Retailer acknowledges that:

- Message frequency may vary
- Message and data rates may apply
- Consent is not a condition of purchase
- Retailer may opt out at any time by replying **STOP**

14. Governing Law

- The laws of the province where Retailer is located and applicable federal laws of Canada.

15. Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to the Freezer and supersedes all prior agreements, understandings, or representations.

SUPPLIER

Signature: _____

Name: _____

Title: _____

Date: _____

RETAILER

Signature: _____

Name: _____

Title: _____

Date: _____